

Murph Terms of Service

Effective Date: April 9, 2026 Company: Just Cobuild, Co. ("Murph," "we," "us," or "our")

These Terms of Service ("Terms") govern your access to and use of Murph's hosted websites, hosted applications, hosted onboarding flows, hosted settings pages, hosted APIs, hosted messaging features, hosted integrations, and related managed services that link to these Terms (collectively, the "Hosted Service").

Murph may also offer local, self-hosted, and open-source software ("Local Software"). These Terms do not replace the open-source license terms that apply to Local Software. If you download, run, modify, or distribute Local Software made available under an open-source license, that Local Software is governed by the applicable open-source license. These Terms apply only to your use of the Hosted Service.

By accessing or using the Hosted Service, you agree to these Terms. If you do not agree, do not use the Hosted Service.

Important Notices

- Auto-renewal. Paid subscriptions renew automatically until canceled, unless applicable law requires otherwise or the checkout flow states otherwise.
- Health disclaimer. Murph is not a doctor, medical device, hospital, pharmacy, or emergency service. Murph does not provide medical care.
- AI and wearable limitations. Murph may use AI-generated responses and third-party wearable or imported data, each of which may be incomplete, delayed, or wrong.
- Disputes. These Terms include important rules about dispute handling, governing law, and venue.

1. Eligibility and Authority

You may use the Hosted Service only if:

1. you are legally capable of entering into a binding agreement;
2. you are not barred from using the Hosted Service under applicable law;
3. you comply with these Terms; and
4. if you use the Hosted Service on behalf of a company, clinic, coach, family office, or other organization, you have authority to bind that organization.

Minimum age. You must be at least 18 years old to use the Hosted Service.

2. What Murph Is

Murph is a health assistant and health-organization tool that may include, depending on the features you enable or purchase:

- health-related conversations through channels such as Telegram, iMessage, email, or similar surfaces;
- wearable and connected-source integrations, including sources such as Oura, WHOOP, Garmin, or similar providers;
- meal, supplement, routine, note, symptom, health-history, and other wellness logging;
- AI-generated summaries, suggestions, reminders, pattern-spotting, and follow-up prompts;
- phone-based onboarding and identity verification;

- subscription billing, account management, and hosted settings;
- invite links and other import/export flows; and
- local-first and hosted workflows that may interact with one another.

Some features may be available only in Local Software, while others may be available only in the Hosted Service. We may add, remove, or change features, providers, and integrations over time.

Subject to these Terms, Murph grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable right to access and use the Hosted Service only for your personal use or your organization's internal lawful use.

3. Health, Safety, Emergency, and Medication Disclaimer

Murph is not medical advice and is not a substitute for a qualified healthcare professional. Except where we expressly and specifically say otherwise in a product-specific notice, Murph and the Hosted Service are not a medical device and are not intended to diagnose, treat, cure, prevent, monitor, or alleviate any disease, injury, or medical condition.

Murph's content, outputs, summaries, suggestions, reminders, and analytics are provided for informational, educational, organizational, and general wellness purposes only. They may not be appropriate for your specific circumstances.

You should always use your own judgment and consult a licensed clinician before making decisions about medications, supplements, treatment, medical testing, training, diet, sleep, or exercise. Do not use Murph to determine medication or supplement dosing, treatment timing, or whether to start, stop, or change any medication, supplement, or therapy.

Emergency use is prohibited. Do not use Murph for emergencies, urgent care, crisis response, or time-sensitive clinical decisions. If you think you may have a medical emergency, contact emergency services or seek immediate in-person medical care.

Use of the Hosted Service does not create a doctor-patient, therapist-patient, coach-patient, fiduciary, or similar professional relationship between you and Murph.

4. AI Outputs and Automation

Murph may use artificial intelligence, machine learning systems, third-party model providers, rules engines, and automations to generate messages, summaries, suggested actions, reminders, or other output (collectively, "Output").

Some Output may be generated automatically and may not be reviewed by a human before it is returned to you or used in a workflow you enable.

You understand and agree that:

1. Output may be inaccurate, incomplete, biased, out of date, poorly phrased, or unsuitable for your situation;
2. Output may reflect limitations in source data, wearable data quality, third-party APIs, or provider availability;
3. Murph may trigger automated messages or workflows based on the rules, channels, and permissions you enable; and
4. you are responsible for using independent judgment before relying on Output or any automated result.

Output is for informational purposes only and is not professional medical, legal, tax, financial, or other professional advice.

5. Accounts, Identity, and Security

To use some hosted features, you may need to create or activate an account using a phone number, email address, linked wallet, third-party identity service, invite link, passkey, or similar credential.

You agree to:

- provide accurate, current, and complete information;
- keep your devices, passkeys, sessions, tokens, and linked accounts secure;
- use only phone numbers, messaging accounts, email accounts, wallets, devices, and integrations that you are authorized to use;
- promptly update information that changes; and
- notify us promptly at legal@justco.build if you believe your account or credentials have been compromised.

You are responsible for activity that occurs through your account, sessions, devices, or linked credentials, except to the extent caused by our breach of law or these Terms.

We may require additional verification, decline onboarding, revoke sessions, reset credentials, or disable access if we suspect fraud, impersonation, security risk, unauthorized use, or legal exposure.

6. Transactional Messages and Communications

If you use phone-based sign-in, invite flows, verification codes, email sync, messaging integrations, or similar hosted features, you agree that we and our providers may send you transactional communications, including one-time passcodes, sign-in links, service notices, billing notices, security notices, and account-related messages.

You understand that:

- message and data rates may apply;
- consent to receive transactional communications may be necessary to use certain hosted features;
- consent to receive marketing communications, if any, is separate; and
- opting out of promotional messages will not stop service-related or security-related communications where allowed by law.

7. Connected Services, Wearables, and Third-Party Dependencies

Murph may let you connect or interact with third-party services, devices, or accounts, including identity providers, messaging providers, wearable providers, payment processors, AI model providers, cloud providers, search providers, and email providers (collectively, "Connected Services").

If you enable a Connected Service:

- you authorize us to exchange relevant information with that Connected Service to provide the feature you enabled;
- your use of the Connected Service remains subject to that provider's own terms and policies;
- you are responsible for maintaining valid credentials, permissions, and legal authorization for the connection; and
- you understand that data from Connected Services may be delayed, inaccurate, unavailable, incomplete, reformatted, revoked, or changed without notice.

Murph does not own or control Connected Services and is not responsible for their products, subscriptions, warranties, uptime, safety, security, pricing, API changes, or data practices.

8. User Content and Data Rights

"User Content" means information you submit to Murph or authorize Murph to access, including messages, notes, logs, attachments, chats, health-related text, wearable data, imported data, account metadata, and content shared through share or invite features.

As between you and Murph, you retain ownership of your User Content.

You grant us a non-exclusive, worldwide, limited license to host, store, reproduce, process, transmit, display, analyze, modify, and otherwise use User Content only as reasonably necessary to:

- provide, secure, support, and improve the Hosted Service;
- authenticate users and maintain account state;
- sync the Connected Services and features you enable;
- generate Output and service functionality you request;
- process payments, billing, fraud prevention, and customer support;
- investigate abuse, enforce these Terms, and comply with law; and
- create de-identified or aggregated analytics or service-improvement materials as described in our Privacy Policy.

This license ends when your User Content is deleted from our active systems, except to the extent retention is reasonably necessary for backups, security, audit logs, legal compliance, dispute resolution, or legitimate internal operational purposes.

No public marketing use without separate permission. We will not use your identifiable private health logs, messages, attachments, or similar User Content in public marketing materials without your separate consent.

You represent and warrant that:

1. you have all rights, consents, and permissions needed to provide User Content to Murph;
2. your User Content and your use of the Hosted Service do not violate any law or third-party rights;
3. if you upload, sync, or share information about another person, you have any consent required by law; and
4. you will not submit content that is unlawful, infringing, defamatory, fraudulent, or intentionally misleading in a way that could foreseeably cause harm.

9. Invites, Imports, and Shared Content

Murph may allow you to create invite links or similar features that allow another person to join, view, claim, or import content.

If you use these features:

- you are solely responsible for deciding what to share;
- you must have the right and any necessary consent to share that content;
- you understand that shared content may be copied into another account, vault, or environment and may not be revocable after claim or import;
- you must not disclose another person's private, health, or sensitive information without authorization; and
- you must not access, redeem, intercept, or use a link that was not intended for you.

Invite and import links may be single-use, time-limited, automatically expiring, or disabled after claim. For privacy and security reasons, some links may expire on a short schedule shown in the product. We may refuse, revoke, expire, or invalidate invite links or import flows at any time for security, abuse, legal, policy, or operational reasons.

10. Privacy, Sensitive Information, and HIPAA

Our Privacy Policy, available at <https://withmurph.ai/legal/privacy.pdf>, explains how we collect, use, disclose, and process personal information through the Hosted Service and is incorporated into these Terms by reference.

Because Murph is health-oriented, some information you provide may be sensitive. You understand and agree that:

- the Hosted Service may involve cloud processing, encrypted storage, and third-party subprocessors;
- Local Software and self-hosted Murph may have different privacy, locality, and security characteristics than the Hosted Service;
- when we say data is encrypted, that does not mean the Hosted Service is zero-knowledge, operator-blind, or inaccessible to us where decryption or readable processing is necessary to operate hosted features; and
- unless we expressly agree otherwise in a separate signed writing, Murph is not acting as your HIPAA business associate and the Hosted Service is not offered under a Business Associate Agreement.

Do not submit regulated protected health information to the Hosted Service on behalf of a covered entity unless and until Murph expressly offers that service under a signed BAA.

11. Subscriptions, Billing, and Automatic Renewal

Some hosted features require a paid subscription or other fees.

If you purchase a paid hosted plan:

- you agree to pay all fees, taxes, and charges presented at checkout;
- you authorize us and our payment processors to charge your selected payment method on a recurring basis, if your plan is recurring;
- your subscription term may be monthly, annual, prepaid, or another term disclosed at checkout;
- your subscription automatically renews unless you cancel before the renewal date; and
- all billing, payment, and entitlements may be handled through us or our third-party payment processors.

Where required by law, we will provide advance notice of automatic renewal terms and renewal charges.

Trials and Promotions

We may offer free trials, discounts, credits, or promotional terms. Unless otherwise stated in the applicable offer or required by law:

- trials and promotions may be modified, suspended, or withdrawn at any time;
- a trial may convert to a paid subscription when the trial ends unless you cancel beforehand; and
- promotional pricing may expire at the end of the promotional period.

Price Changes

We may change fees prospectively. If you are on a recurring plan and we change the recurring price for a future renewal term, we will provide at least 30 days' advance notice unless a different period is required by law.

12. Cancellation, Refunds, Chargebacks, and Payment Reversals

You may cancel a recurring subscription at any time through your account settings, the payment channel you used, or by contacting legal@justco.build, unless a different method is specified at checkout.

Unless otherwise stated at checkout or required by law:

- cancellation stops future renewals only;
- your cancellation takes effect at the end of the then-current paid term;
- fees already paid are non-refundable;
- partial billing periods are not prorated; and
- we may, but are not obligated to, issue credits, refunds, or grace periods in individual cases.

If applicable law gives you a cooling-off, withdrawal, or similar consumer right, that law controls.

Material reduction remedy. If we materially reduce the core paid Hosted Service during a then-current prepaid term for reasons other than legal compliance, security, fraud prevention, or third-party provider loss outside our reasonable control, you may cancel that paid term within 30 days after notice and request a prorated refund or service credit for the unused remainder.

We may suspend, downgrade, or terminate access if a payment fails, is reversed, becomes delinquent, is disputed, or is subject to a chargeback, refund, fraud review, or similar payment reversal. Reactivation may require updated payment information, settlement of past-due amounts, or manual review.

If you purchased through an app store, marketplace, or reseller, that third party's billing, renewal, refund, and cancellation terms may also apply.

13. Availability, Support, Changes, and Beta Features

We may modify, update, suspend, or discontinue all or part of the Hosted Service at any time.

We do not guarantee that any feature, model provider, Connected Service, wearable integration, channel, invite flow, or import or export pathway will remain available.

We will use commercially reasonable efforts to provide support, but these Terms do not entitle you to any guaranteed level of support, uptime, response time, availability, or turnaround time.

The Hosted Service may include experimental, beta, preview, or early-access features. Those features may be incomplete, unreliable, changed, or removed at any time and may be subject to additional terms.

We do not guarantee uninterrupted or error-free operation. The Hosted Service may be unavailable or degraded due to maintenance, incidents, provider outages, infrastructure failures, integration changes, abuse prevention, legal requirements, or reasons outside our reasonable control.

14. Acceptable Use

You may not use the Hosted Service to, or help others to:

1. violate any law, regulation, court order, or third-party right;
2. upload, import, or share data you do not have the right to use;
3. impersonate another person or use another person's phone number, email, messaging account, wallet, or device connection without authorization;

4. copy, scrape, harvest, probe, reverse engineer, test vulnerabilities, or attempt unauthorized access to the Hosted Service or related systems, except to the extent a restriction is prohibited by applicable law;
5. introduce malware, malicious code, denial-of-service traffic, phishing content, or abusive automation;
6. bypass rate limits, access controls, invite limits, payment controls, or security restrictions;
7. send spam, scams, or unsolicited commercial communications through Murph channels or integrations;
8. use Murph for emergency triage, clinical decision support, medication-dosing decisions, or other high-risk uses where inaccurate or delayed output could reasonably cause death, bodily injury, or significant property damage;
9. use Murph to make decisions about another person's employment, housing, insurance, credit, education, benefits, or legal status;
10. misuse invite links or imported content to exfiltrate or expose another person's information; or
11. use the Hosted Service in a way that damages, disables, overburdens, or impairs Murph or other users.

We may investigate suspected violations and take any action we reasonably believe is appropriate, including suspending accounts, revoking sessions, blocking integrations, removing content where permitted, and cooperating with law enforcement or affected third parties.

15. Local Software and Open-Source Licenses

Local Software may be made available under one or more open-source licenses. Nothing in these Terms limits the rights you receive under an applicable open-source license for Local Software.

Conversely, no open-source license grants you rights to the Hosted Service, Murph trademarks, paid hosted features, hosted infrastructure, or proprietary operational systems except as expressly stated.

Murph does not currently sell or warranty first-party wearable hardware under these Terms. If Murph later offers first-party hardware, peripherals, or physical goods, separate terms of sale, delivery, or warranty terms may apply.

16. Intellectual Property and Brand

The Hosted Service, including our site design, hosted application logic, visual interfaces, branding, trademarks, logos, and non-open-source content, is owned by Murph or its licensors and is protected by intellectual property laws.

Except for the limited rights expressly granted in these Terms, we reserve all rights in and to the Hosted Service.

You may not use Murph's name, trademarks, logos, or branding without our prior written consent, except as permitted by law or the applicable open-source license.

17. Feedback

If you provide suggestions, ideas, comments, or feedback about Murph, you grant us a worldwide, perpetual, irrevocable, sublicensable, transferable, royalty-free license to use that feedback for any purpose without restriction or compensation to you.

18. Suspension and Termination

You may stop using the Hosted Service at any time.

We may suspend or terminate your access, in whole or in part, immediately or prospectively, if:

- you violate these Terms or applicable law;
- we suspect fraud, abuse, impersonation, or unauthorized access;
- your use creates legal, security, reputational, or operational risk;
- your payment fails or is reversed;
- we are required to do so by law, court order, or a third-party provider obligation; or
- continuing to provide the Hosted Service is no longer commercially or technically feasible.

After termination:

- your right to use the Hosted Service ends;
- we may revoke sessions, tokens, access keys, invitations, and hosted permissions;
- Local Software you lawfully obtained may remain available under its own license; and
- we may retain certain data as permitted or required by law, for backups, fraud prevention, audit logs, security, dispute resolution, or as described in our Privacy Policy.

The following sections survive termination to the extent applicable: Sections 8 through 10, 12, 18 through 27, and any other provisions that by their nature should survive.

19. Data Retention, Deletion, and Export

You are responsible for maintaining your own copies of content you care about.

Where the Hosted Service offers export, import, or deletion features, you may use those features subject to product limits, fraud controls, retention obligations, and applicable law. If the Hosted Service does not offer a particular export or deletion control, you may contact legal@justco.build.

We may retain residual copies of data for a limited period in backups, logs, encrypted storage, or operational systems, and may retain information longer where necessary for security, fraud prevention, legal compliance, tax, accounting, or dispute resolution.

20. Disclaimers

TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE HOSTED SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE." MURPH AND ITS AFFILIATES, LICENSORS, CONTRACTORS, AND SERVICE PROVIDERS DISCLAIM ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, QUIET ENJOYMENT, ACCURACY, OR THAT THE HOSTED SERVICE WILL BE UNINTERRUPTED, ERROR-FREE, SECURE, OR FREE OF HARMFUL COMPONENTS.

Without limiting the above, we do not warrant that:

- Murph's outputs are accurate, complete, current, safe, or clinically appropriate;
- AI-generated output will be reliable or suitable for your needs;
- wearable, imported, or third-party data is accurate, complete, or timely;
- any message, sync event, notification, or import will be delivered or completed;
- any integration will remain available or compatible;

- hosted or local data will never be lost, corrupted, delayed, or inaccessible; or
- the Hosted Service will meet your expectations or achieve any health, wellness, business, or personal outcome.

Some jurisdictions do not allow certain disclaimers, so some of the above may not apply to you.

21. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW:

1. MURPH AND ITS AFFILIATES, LICENSORS, CONTRACTORS, AND SERVICE PROVIDERS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, GOODWILL, DATA, BUSINESS OPPORTUNITY, OR BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY OF THOSE DAMAGES.
2. OUR TOTAL AGGREGATE LIABILITY FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THE HOSTED SERVICE OR THESE TERMS WILL NOT EXCEED THE GREATER OF: (A) THE AMOUNTS YOU PAID US FOR THE HOSTED SERVICE IN THE 12 MONTHS BEFORE THE CLAIM AROSE; OR (B) USD \$100.

These limitations apply regardless of the legal theory and even if a remedy fails of its essential purpose.

Nothing in these Terms excludes or limits liability that cannot be excluded under applicable law, including liability for fraud, willful misconduct, gross negligence, or, where required by law, death or personal injury.

22. Indemnity

To the maximum extent permitted by law, you will defend, indemnify, and hold harmless Murph and its affiliates, officers, directors, employees, contractors, licensors, and service providers from and against third-party claims, liabilities, damages, judgments, awards, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- your User Content;
 - your misuse of the Hosted Service;
 - your violation of these Terms;
 - your violation of applicable law or third-party rights; or
 - your sharing, syncing, or disclosure of another person's information without required authorization,
- except to the extent the claim arises from Murph's breach of these Terms or Murph's gross negligence or willful misconduct.

23. Export Controls and Sanctions

You may not use the Hosted Service if you are located in, ordinarily resident in, or organized under the laws of a jurisdiction subject to comprehensive sanctions, or if you are on a government restricted-party list, except as authorized by applicable law.

You agree not to use, export, re-export, or make available the Hosted Service in violation of export control, sanctions, or trade laws.

24. Informal Dispute Resolution, Governing Law, and Venue

Before filing a claim, each party agrees to try to resolve the dispute informally by sending written notice to the other party describing the dispute and the requested relief. Murph notices must be sent to legal@justco.build. If the dispute is not resolved within 30 days after notice is received, either party may bring a claim as permitted by this Section.

These Terms are governed by the laws of the State of Delaware, excluding its conflict-of-laws rules.

Any dispute arising out of or relating to these Terms or the Hosted Service that is not resolved informally will be brought exclusively in the state or federal courts located in the State of Delaware, and each party consents to those courts' personal jurisdiction and venue, except where applicable law requires a different forum or gives you a non-waivable right to bring a claim elsewhere.

Nothing in this section limits either party's right to seek temporary or preliminary injunctive relief to protect its intellectual property, confidential information, or security interests.

25. Changes to These Terms

We may update these Terms from time to time. If we make material changes, we will provide notice by updating the Effective Date, posting the revised Terms, emailing you, notifying you through the Hosted Service, or using another reasonable method.

Changes apply prospectively unless otherwise required by law. If you continue using the Hosted Service after the revised Terms become effective, you agree to the updated Terms. If you do not agree, you must stop using the Hosted Service.

26. General Terms

- These Terms, together with any incorporated policies, order forms, checkout terms, and any separate written agreements we sign with you, form the entire agreement between you and Murph regarding the Hosted Service.
- If any provision is held unenforceable, the remaining provisions remain in effect.
- Our failure to enforce any provision is not a waiver.
- You may not assign these Terms without our prior written consent. We may assign these Terms in connection with a merger, acquisition, corporate reorganization, financing, or sale of assets.
- We are not liable for delay or failure to perform caused by events beyond our reasonable control, including internet or utility failures, provider outages, labor disputes, acts of God, war, terrorism, civil unrest, epidemic or pandemic events, or governmental actions.
- Section headings are for convenience only.
- Nothing in these Terms creates a partnership, joint venture, agency, employment, fiduciary, or franchise relationship between you and Murph.
- These Terms do not limit any non-waivable rights you may have under applicable consumer protection law.
- In the event of a conflict between these Terms and an applicable open-source license, the open-source license controls only with respect to the Local Software governed by that license.

27. Contact Information

Murph Just Cobuild, Co. 2261 Market Street, STE 85230 San Francisco, CA 94114 USA legal@justco.build
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